

ys a louer of himselfe, & partiall in the iudgemente of himselfe.'

In Camera Stellata, Coram Consilio ibidem, Veneris, 7 Nouembr. 1606, adonque presente, Ellsemere, Lo. Chauncellor; Bankrupt,¹ archeuesque de Canterberie; Dorset, Lo. Tresorer; H. Hawarde, Lo. Northampton; Burleighe, Lo. Exeter; Zouche, Lo. Zouche; Vaughan, euesque de Londres; Popham, Ch. Justice; Koke, Ch. Justice; et Flemminge, Ch. Baron.

[p. 289]

1606
Nov. 7

'The Former Cause betwene the Ladie Russelle, pl., & the Earle of nottingham, formerlye referred to the Judges, was now this daye hearde one bothe sides againe.'²

LADY
RUSSELL
c.
EARL OF
NOTTING-
HAM
and others
Riot, etc.

'And the Judges did all wth Consente delyuer there opinions vpon the reference in there sentence, & would not before.

'The Lord Cheife Baron Cleered the Lo. Admirall from procuringe any Riote, for his Commaundemente was lawfull, & therefore he was Cleere, albeit the riote was subsequente. Sugden was onelye presente at the firste, & this vsage was no ryote, for the Lorde Admyrall had th'enheritaunce of the Castle, & the Ladie had onelye the Custodie to the vse of the Lo. Admirall, & her possessyon was my Lorde's possessyon; & therefore yf a seruaunte that keepe a howse will keepe his M^r out of possession, the M^r maye breake the howse, for he dothe not eiecte another out of possession. But the 2^d riote ys of greater difficultie, for the ladye hathe the Custodie of the parke, & yf the lodge were an auntiente lodge at the time of the pattente made, then it dothe apperteigne to the keper, as proper to the keper to haue a lodge. yf it apperteigne to the keper in pointe of intereste, then the 2^d was a ryote; but as the Case stoode, no restitution Could be graunted. And the Justice of peace³ did very discreatelye, for there was no

Fleming,
C. B.

[p. 290]

¹ A curious misspelling of Bancroft.

² See *ante*, p. 271.

³ Thomas Dolman.